

IN THE SENATE

SENATE BILL NO. 1310

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO HUMAN FETAL TISSUE; AMENDING TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 69, TITLE 39, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE USE OF HUMAN FETAL TISSUE IN PRODUCTS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 69, Title 39, Idaho Code, and to read as follows:

CHAPTER 69

HUMAN FETAL TISSUE IN PRODUCTS

39-6901. HUMAN FETAL TISSUE IN PRODUCTS. (1) All products that use any ingredients or additives that have been subjected to the use of human fetal tissue in the testing or production phase shall include explicit labeling indicating inclusion of human fetal tissue in the research, production, or development of the product.

(2) The provisions of this section shall apply to any vaccination or medical product that includes human fetal tissue and shall apply to products where testing was performed on the final product, or its components or materials, or to the specific production lot or batch of the product, or its components or materials.

(3) Manufacturers shall be strictly liable for a violation of the provisions of subsection (1) of this section. Retailers shall be liable only if they had actual knowledge that the product required labeling as provided in subsection (1) of this section and failed to do so.

(4) When the attorney general has reason to believe that any person or entity is violating or has violated the requirements of this section, the attorney general may bring an action to obtain injunctive relief and civil penalties of up to five thousand dollars (\$5,000) per violation or up to five percent (5%) of the gross revenue derived from the sale of the violating product in this state while such sales were in violation. The injunction shall be sufficient to prevent the defendant from violating the requirements of this section.

(5) (a) It shall be an affirmative defense that:

(i) Consumers have been conspicuously informed while purchasing that the product has been subjected to the use of human fetal tissue, such as:

1. For online sales, by a prominent display on the website the product was ordered from; or
2. For in-person sales, by being informed vocally;

1 (ii) A manufacturer established and maintained written policies
2 reasonably designed to ensure compliance with the provisions of
3 subsection (1) of this section, including verification from in-
4 gredient suppliers, and informed retailers of such policies; and
5 (iii) A retailer relied in good faith on the labeling provided by a
6 manufacturer.

7 (b) It shall not be an affirmative defense that the manufacturer or re-
8 tailer is not based in this state.

9 (6) As used in this section, "human fetal tissue" means tissue or cells
10 obtained from a dead human embryo or fetus after a spontaneous or induced
11 abortion or after a stillbirth and includes any fetal cell, embryonic cell,
12 or cell line derived from a fetal or embryonic cell and any derivative bio-
13 logical matter such as deoxyribonucleic acid (DNA) or proteins originating
14 from such tissue, cells, or cell lines.

15 SECTION 2. An emergency existing therefor, which emergency is hereby
16 declared to exist, this act shall be in full force and effect on and after
17 July 1, 2026.